



File No.: EXP202400068

## RESOLUTION FOR TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On January 23, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CAJA RURAL DE TERUEL, S.C.C. (hereinafter the claimed party). After notifying the initiation agreement and analyzing the allegations presented, on December 3, 2024, the proposed resolution was issued, which is transcribed below:

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File No.: EXP202400068

## PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

### BACKGROUND

FIRST: On 12/14/2022, a security breach of personal data of the entity belonging to the CAJA RURAL GROUP: CAJA RURAL DE TERUEL S.C.C., with NIF F44002756 (hereinafter CAJATERUEL or the entity) was notified as the data controller.

It should be noted that, as a result of notifications to the Division of Technological Innovation of this Agency regarding the personal data breach in various Entities of the aforementioned Group, including the claimed party, related to a cyber incident, the General Subdirectorate of Data Inspection was ordered to carry out the appropriate preliminary investigations to determine a possible violation of data protection regulations.

1. Initially, the breach notifications were made by the data processor RURAL SERVICIOS INFORMÁTICOS S.L. (hereinafter RSI), concerning 19 entities of the Group:
2. The initial notification and additional notification dates are: 12/12/2022 and 01/10/2023.
3. However, on 12/13/2022, 12/14/2022, and 12/15/2022, breach notifications were made by another 7 entities of the group, in their capacity as data controllers, despite the fact that the data processor is the same.

The breach notification forms are accompanied by the Security Incident Report prepared in all cases by RSI, the data processor.

- Date of breach detection: 12/09/2022
- Date of breach occurrence: 11/10/2023
- Summary of the notification:

(...)

- Type of affected data:

(...)

- Approximate number of individuals whose personal data is collected, stored, or otherwise processed exclusively related to the processing in which the breach occurred, No. of individuals (...).
- Approximate number of individuals whose data has been affected by the breach, No. affected (...).
- No. communicated (...).

SECOND: As a result of the notifications to the Division of Technological Innovation of this Agency regarding the personal data breach in various Entities of the CAJA RURAL GROUP related to a cyber incident, the General Subdirectorate of Data Inspection is ordered to carry out the appropriate preliminary investigations to determine a possible violation of data protection regulations.

During the current proceedings, the following Entities have been investigated:

(...)

In order to investigate the occurrence of the described facts, on 03/29/2023, a request for information was made to RSI. The response to the request was received on 04/14/2023.

On 05/12/2023 and 09/27/2023, additional information was requested from RSI, and on 05/26/2023 and 10/11/2023, responses were received at the electronic headquarters of the AEPD.

In order to introduce the applications involved in the breach that will be referenced throughout this report, the description provided in the documentation submitted by RSI in the context of the investigation proceedings is reproduced below:

(...)

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Additionally, RSI, in its document received at the AEPD on 04/14/2023, states:

(...)

Regarding the number of users served by Electronic Banking and the modes of access:

(...)

Regarding the chronology of events. Actions taken to minimize adverse effects and measures adopted for final resolution

In the Security Incident Analysis Report accompanying the breach notification form, it is stated:

(...)

From the areas of RSI responsible for fraud and the development of the NBE, the investigation begins to understand how the fraud occurred.

(...)

Regarding the causes that made the breach possible

- Contributing factors that led to the incident

(...)

Regarding the affected data

The information that may have been accessed during the breach includes personal, contact, and financial data:

(...)

In the Security Incident Analysis Report accompanying the breach notification form, the type of information extracted by the cybercriminal and the impact on individual clients is analyzed, taking into account, among others, the following variables:

(...)

During the course of the investigation proceedings, additional information was requested from RSI regarding the data of clients who do not have an Electronic Banking Agreement to which the users involved in the breach may have accessed. In its response document, RSI states that:

(...)

The following personal and contact data are listed:

(...)

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Regarding the data processing agreement

RSI provides the Record of Processing Activities of RSI and indicates that the processing related to the Electronic Banking operations falls under the Customer Management processing, where RSI acts as the processor.

RSI provides the Agreement modifying the data protection clause of the service provision contracts signed between CAJA RURAL DE JAÉN, BARCELONA Y MADRID, S.C.C. (data controller), and RSI (data processor).

RSI states that this Agreement was signed with the Entities in 2018 and that it is the same model for all of them.

The Agreement includes, among other aspects:

- The purpose of the Agreement is to establish the legal regime applicable to the processing of personal data that is processed or may be processed by the data processor, under the service provision contracts signed between the parties, and which are under the ownership and control of the data controller.
- The data processor is obliged to process the data in accordance with the instructions of the data controller.
- The data processor shall apply technical and organizational security measures to ensure an adequate level of security.
- The data processor is authorized to subcontract the companies listed in Annex A of the Agreement – Subcontracting. The subcontractor, who also has the status of data processor, is equally obliged to comply with the obligations established in the Agreement for the data processor and the instructions issued by the controller.

Regarding the  
security measures

RSI indicates that the planning for the development of the NBE extends from 2019 to 2022 and that during December 2019, a risk analysis of the NBE was conducted for both the Web version and the App. The following areas were analyzed:

(...)

From the Customer Management processing, RSI indicates that a data protection risk analysis has been conducted by the Data Protection Officer. This analysis is performed with an initial review of the list of threats and the assessment of whether they apply to the processing or not, provides the threat assessment questionnaire, and a second part, where the risk analysis is conducted according to RSI's risk analysis methodology. The result of this analysis is provided.

RSI indicates that, (...) and that in compliance with this line of work, three security evaluations have been conducted on Ruralvía Clásica, the reports of which are provided:

- Report prepared by the company \*\*\*EMPRESA.1, dated 28/02/2022.
- Report prepared by the company \*\*\*EMPRESA.1, dated 28/04/2022.
- Report prepared by the company \*\*\*EMPRESA.2, continuous evaluation reflecting the tests conducted between 01/10/2021 and 30/04/2023, where all critical vulnerabilities are closed.

The report prepared by the Cybersecurity department of RSI is also provided, which lists the three security evaluations conducted by a third party and the status of the resolution of the detected vulnerabilities.

Furthermore, RSI certifies that, (...) by an external provider. The audit report is attached and states:

(...)

Additionally, the audits conducted subsequent to those mentioned in the previous information requests in compliance with the fraud plan are listed:

(...)

Likewise, the latest audit of compliance with security measures (...) to comply with the Delegated Regulation (...) covering the audited period from 15/12/2021 to 15/12/2022 is provided. The report is dated 15/12/2022. Specifically, it focused on reviewing the information associated with the security measures related to enhanced authentication measures across the various channels and payment services offered by RSI. The Audit Report conducted by the firm \*\*\*EMPRESA.3 is provided.

To address the detected vulnerabilities in accordance with the compliance level with \*\*\*NORMA.1, an action plan is being implemented by RSI. The Action Plan with the current status is provided.

(...)

Technical and organizational measures adopted to prevent, as much as possible, incidents like the one that occurred.

In addition to the measures described above, RSI conveys that:

(...)

In its submission dated 11/10/2023 to the AEPD, RSI details the operation of these controls:

(...)

Throughout February 2023, the following actions were carried out:

(...)

Regarding communication to the affected parties

9 entities, including CAJATERUEL, have communicated the breach to all affected customers who have an Electronic Banking Agreement.

Another 10 entities of the Group have communicated the breach to all affected customers.

And another 7 have not communicated the breach to the affected customers who are natural persons:

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The Model of communication to those affected by the breach is provided, which includes the contact details of the DPO of the Entity and describes the possible consequences of the incident for the affected individuals.

Information on the recurrence of these events and the number of analogous events that have occurred over time

RSI states that these events are not recurrent, being this the first occasion on which they have occurred.

It also notes that they have not received any news from their service (...) regarding the publication of data on the dark web.

THIRD: On 23/01/2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CAJATERUEL for the alleged violations of Articles 5.1.f), 32.1, and 33.1 of the GDPR, classified under Articles 83.5.a) and 83.4.a) of the GDPR.

This initiation agreement, which was notified to CAJATERUEL in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was recorded on 23/01/2024, as evidenced by the acknowledgment of receipt in the file.

FOURTH: After being notified of the initiation agreement, CAJATERUEL requested, by written communication dated 29/01/2023, a copy of the documents that made up the administrative file and an extension of the deadline to submit allegations and propose relevant evidence.

By written communication dated 05/02/2024, the instructor extended the deadline for submitting allegations by a maximum of ten days, counted from the day following the receipt of the copy of the file.

On 26/02/2023, the instructor of the file sent a written communication to the data processor indicating that since a large part of the documentation in the file had been provided by RSI through the General Electronic Registry, the registration numbers of the submitted documents were grouped by dates, so that within 10 working days, they could communicate if there were documents, or parts of documents, that they considered should not be provided to the accused party, due to reasons related to commercial secrecy, personal data protection, or others.

On 11/03/2024, the data processor stated that "regarding its transfer to the accused party, my client considers that it does not correspond to them, but to the AEPD to assess the legality of said transfer and/or, if applicable, the existence of any impediments or limitations that the applicable regulations may establish."

On 11/04/2024, the instructor of the procedure sent two written communications to the accused party: one, providing a copy of the administrative file in accordance with the provisions of Article 53.1 a) of the LPCAP and, separately, a second one in which the key and hash were provided that would allow access to the documentation included in the physical support.

On 25/04/2024, CAJATERUEL submitted a written statement of allegations summarizing the following:

- That all procedures (...) opened against the entities belonging to the Caja Rural Group be accumulated due to the close connection and substantial identity; the absence of culpability of the accused party in this case;
- The impact on the principles of sanctioning law as a consequence of the interpretation made by the AEPD;

- Non-existence of a violation of Article 32.1 of the GDPR;
- Non-existence of a violation of Article 5.1.f) of the GDPR;
- Non-existence of a violation of Article 33 of the GDPR;
- Violation of the principle of proportionality in determining the sanctions;
- That the proceedings be archived or a warning sanction or a significant reduction of the sanction be agreed upon.

FIFTH: On 21/10/2024, it was agreed to open a period for the practice of evidence, agreeing on the following:

- To consider the complaint filed by the complainant and its documentation as reproduced for evidentiary purposes, as well as the documents obtained and generated by the Inspection Services that are part of the file.
- To consider the allegations to the initiation agreement presented by the accused party and the accompanying documentation as reproduced for evidentiary purposes.
- To request the accused party to provide documentation proving that, if applicable, they had instructed their data processor to notify the AEPD of the personal data breach subject to this sanctioning file and the accreditation of both the aforementioned instruction and the terms contained therein, along with the date of the same.

On 05/11/2024, the accused party responded to the evidence practiced, the content of which is included in the file.

SIXTH: A list of documents in the procedure is attached as an annex.

From the actions taken in this procedure, the following have been accredited,

#### PROVEN FACTS

##### FIRST:

As stated in the deed of elevation to public of social agreements and granting of power of attorney granted by CAJA RURAL DE TERUEL, S.C.C., dated 09/06/2021, (...).

It is governed by the provisions of its Statutes adapted to the Cooperative Law and, in matters not provided for therein, by Law 13/1989, of May 26, on Credit Cooperatives, its development regulations, and other provisions that, in general, regulate the activity of credit institutions, applying the cooperative legislation as supplementary.

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Likewise, as provided in its Articles of Association, it enjoys its own legal personality and full capacity to act.

##### SECOND:

On 25/04/2023, CAJATERUEL submitted, along with the written allegations to the initiation agreement, the "Agreement to modify the data protection clause of the service provision contracts signed between CAJATERUEL and RSI dated 25/05/2018 and signed on behalf of CAJATERUEL by A.A.A.

In said Agreement it is specified:

"ON THE ONE HAND, CAJATERUEL (hereinafter, Data Controller), (...)

AND

ON THE OTHER HAND, RSI (hereinafter, Data Processor), (...)

In said agreement it is indicated that,

"The purpose of the Agreement is to establish the legal regime applicable to the processing of personal data that is processed or may be processed by the data processor, by virtue of the service provision contracts that are signed between the parties, and that are under the ownership and control of the data controller.

The data processing activities provided for are those strictly necessary for the provision of the services rendered in the main contract. The processing activities that could be carried out by RSI, the type of information to be processed, and the categories of data subjects whose data could be processed are defined."

In the Agreement itself, it is indicated, in its section 3, regarding the Obligations of the Data Processor, that:

“The Data Processor and all its personnel are obliged to:

a) Use the personal data subject to processing, or those collected for its inclusion, only for the purpose of this assignment. Under no circumstances may the data be used for any other purpose, whether for its own or for third parties. To carry out any other activity aimed at the processing or use of the data files of the Data Controller, prior written consent from the Data Controller will be necessary.

b) Process the data in accordance with the instructions of the Data Controller.

(...)”

Regarding the notification of “data security breaches,” it is specified in section 3.3 that:

“The Data Processor shall notify the Data Controller, without undue delay, and in any case, before the maximum period of 36 hours, and through the DPO, of any data security breaches concerning the personal data under its charge of which it becomes aware, together with all relevant obligations for the documentation and communication of the incident.

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(...)”.

It adds section 3.4 regarding security measures that:

“The Data Processor, in accordance with the provisions of Article 32, shall apply those technical and organizational measures appropriate to ensure a level of security adequate to the risk of processing detected in each case, considering the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probability and severity risks to the rights of natural persons at any given time.

In any case, it must implement mechanisms equivalent to those used by the Data Controller to:

a. Ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services.

b. Restore the availability and access to personal data quickly in the event of a physical or technical incident.

c. Regularly verify, evaluate, and assess the effectiveness of the technical and organizational measures implemented to ensure the security of processing.

d. Pseudonymize and encrypt personal data, where applicable.

The technical and organizational measures to be implemented by the Data Processor are reflected in Annex B of this agreement - Security Measures.

The Data Processor is authorized to subcontract the companies reflected in Annex A of the Agreement - Subcontracting. The subcontractor, who also has the status of Data Processor, is equally obliged to comply with the obligations established in the Agreement for the Data Processor and the instructions issued by the Data Controller.

Regarding the obligations of the Data Controller, it is indicated in section 4 of the Agreement:

“It is the responsibility of the Data Controller:

a) To provide the Data Processor with the necessary data for the provision of the service.

b) If legally required, to carry out a data protection impact assessment of the processing operations to be carried out by the Data Processor.

c) To carry out the necessary prior consultations.

d) To ensure, prior to and throughout the processing, compliance with the GDPR by the Data Processor.

e) To supervise the processing, including conducting inspections and audits.”

In section 5, the DPO of the Data Processor and the Data Controller is identified respectively.

Regarding CAJATERUEL (...):

“Identification Rural Servicios Informáticos, S.L.

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Contact \*\*\*EMAIL.1”.

Regarding the RSI (...):

“Identification B.B.B.

Contact \*\*\*EMAIL.2”.

Section 6 of the Agreement on “Liability” states that,

“If the Processor, or in its case, the contractors, breach this Agreement or the applicable regulations when determining the purposes and means of processing, they will be considered responsible for the processing concerning such processing.

In the event that a supervisory authority sanctions the Data Controller as a direct consequence of the Processor's failure to comply with the stipulations of this Agreement, the Processor shall indemnify the Data Controller as stipulated in the liability clause of the framework contract in force between the parties.”

THIRD:

In the “Agreement to Modify the Data Protection Clause of Service Provision Contracts,” signed between CAJATERUEL and RSI, signed in Madrid on 25/05/2018, Annex B - Security Measures to the Agreement to Modify the Data Protection Clause of Service Provision Contracts indicates that RSI has the following certifications:

(...)

FOURTH:

On 14/12/2022, a personal data breach of CAJATERUEL was reported to the Technological Innovation Division of this Agency, with entry number REGAGE22e00057416033. This notification was sent by RSI, the data processor of CAJATERUEL. Attached to this notification is the “Security Incident Analysis Report.”

On 10/01/2023, an additional notification was made as described in the previous section, with entry number REGAGE23e00001921728. This notification was sent by RSI, the data processor of CAJATERUEL. Attached to this notification is the “Security Incident Analysis Report.”

FIFTH:

CAJATERUEL had the electronic banking application called Ruralvía Clásica for the purpose of providing online banking services to its clients.

CAJATERUEL wanted to change this application to a new electronic banking application called Nueva Banca Electrónica (NBE).

(...)

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On 14/04/2023, in response to the request made by the AEPD, RSI states that:

(...)

SIXTH:

Regarding the establishment of a banner in the Ruralvía Clásica application that linked to the new NBE application and its operation, in the “Security Incident Analysis Report,” dated December 9, 2022, which RSI provided concerning the personal data breach of CAJATERUEL, it is indicated:

(...)

Furthermore, on 14/04/2023, in response to the request made by the AEPD in the context of the preliminary investigation proceedings, RSI responds that:

(...)

SEVENTH:

(...)

EIGHTH:

(...)

NINTH:

Regarding how the personal data breach occurred, on 14/04/2023, RURALVÍA, in response to the information request made by this Agency, states the following,

(...)

Additionally, in the “Final Security Incident Analysis Report,” dated 30/12/2022, which RSI provided concerning the personal data breach of CAJATERUEL, it is indicated in section 1.4.2, “How was the problem detected or how did it happen?” that:

(...)

TENTH:

Furthermore, in the “Final Security Incident Analysis Report,” dated 30/12/2022, which RSI provided concerning the personal data breach of CAJATERUEL, in section 1.4.1, “What happened?” it is indicated that the personal data breach occurred due to a vulnerability in the SSO system, stating that:

(...)

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ELEVENTH:

Regarding the attack pattern used by the cybercriminal, on 14/04/2023, in response to the request made by the AEPD in the context of the preliminary investigation proceedings, RSI indicates that,

(...)

The same provision is contained in section 1.4.2 of the “Final Security Incident Analysis Report,” dated 30/12/2022, which RSI provided concerning the personal data breach of CAJATERUEL.

TWELFTH:

Regarding the causes that allowed the personal data breach, in the “Final Security Incident Analysis Report,” dated 30/12/2022, which RSI provided concerning the personal data breach of CAJATERUEL, it is indicated in section 3, “Cause Analysis” that:

(...)

THIRTEENTH:

In response to the information request made by the AEPD in the context of the preliminary investigation proceedings, RSI responds on 26/05/2023 providing as document 8 an email dated 28/09/2022, before the higher volume of accesses occurred (between November 10 and 23) and the personal data breach was detected, sent by (...).

In the same sense, as indicated, on 14/04/2023, in response to the request made by the AEPD in the context of the preliminary investigation proceedings, RSI responds that,

(...)

On April 14, 2023, in response to the request made by the AEPD in the context of the preliminary investigation proceedings, document 9 titled “Web Application Audit” was provided, in which it was indicated that,

“(...)

FOURTEENTH:

On 14/04/2023, in response to the request made by the AEPD in the context of the preliminary investigation proceedings, document 9 titled “Web Application Audit” was provided, which examined \*\*\*TOOL.1.

(...)

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FIFTEENTH:

Regarding the detection of the personal data breach, in the “Final Security Incident Analysis Report,” dated 30/12/2022, provided by RSI in relation to the personal data breach of CAJATERUEL, it is indicated in section 1.4.1, “What happened?”, that:

(...)

Therefore, although the breach was detected on December 7, 2022, prior accesses to that date are confirmed, with the highest volume of accesses occurring between November 10 and November 23, 2022.

Regarding the measures adopted on November 23, 2022, the aforementioned document indicates that,

(...)

Therefore, these measures were adopted before the detection of the personal data breach (on December 7, 2022) and as a consequence of actions taken to enhance the security of electronic banking.

SIXTEENTH:

Regarding the mitigating measures applied after the personal data breach, in the “Final Security Incident Analysis Report,” dated 30/12/2022, provided by RSI in relation to the personal data breach of CAJATERUEL, it states that,

(...)

SEVENTEENTH:

Subsequently, within the framework of the definitive implementation of the new NBE application, a series of actions are carried out, as noted in the “Final Security Incident Analysis Report,” dated 30/12/2022, provided by RSI in relation to the personal data breach of CAJATERUEL, that,

“(...)

EIGHTEENTH:

Regarding the personal data to which the attacker had access, in the “Final Security Incident Analysis Report,” dated 30/12/2022, provided by RSI in relation to the personal data breach of CAJATERUEL, it indicates which personal data may have been accessed,

(...)

NINETEENTH:

The notification forms of the breach that accompany the Security Incident Report prepared in all cases by RSI, the data processor, as stated in the preliminary investigation report dated November 27, 2023, determine that the number of individuals affected by the personal data breach of CAJATERUEL is 13 users, 11 of whom were notified of the personal data breach.

TWENTIETH:

During the period of evidence collection referred to in the Fifth Background, CAJATERUEL provided the following documents regarding the notification of the personal data breach to the AEPD:

- Email dated 13/12/2022, sent by RSI to CAJATERUEL, in its capacity as data processor, in which it communicates the security incident, indicating that they were preparing a report on it and the steps to be taken (notification to the AEPD and communication to the affected individuals) and requesting validation from CAJATERUEL as the data controller. Thus, it communicates that:

“(...)

After conducting the corresponding triage, the incident requires communication to the AEPD and the affected clients, so we have a margin of 72 hours from its notification to communicate it to the supervisory authority.

In this regard, we can submit the notification to the AEPD as data processors, on behalf of the Entity. For this, we need, please, your agreement as a response to this email.”

(...)”

- Email dated 14/12/2022 from CAJATERUEL to RSI in which it responds:

“(...)

Of course

(...)"

- Email dated 15/12/2022, sent by RSI to CAJATERUEL, in which it communicates that the security breach had been notified to the AEPD, in response to the instructions given. Thus, it communicates that:

"(...)

Attached is the proof of notification of the incident to the AEPD..."

(...)"

TWENTY-FIRST:

According to the diligence dated 19/01/2024 in the file, the business volume (gross margin) of CAJATERUEL during the year 2022 amounts to 34,000,000 euros.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the case examined, in accordance with the provisions of Article 4.1 of the GDPR, it is noted that the processing of personal data is taking place, given that CAJATERUEL carries out, among other activities, the collection and storage of personal data from both natural and legal persons, its clients, such as: (...)

The entity carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means related to the processing of personal data, pursuant to Article 4.7 of the GDPR. Therefore, if it decides the "why" and the "how" personal data should be processed, it must assume its responsibility.

Moreover, the data controller must also ensure the application of technical and organizational measures that guarantee the security of personal data during processing. And must be able to demonstrate compliance with the GDPR and the LOPDGDD.

In turn, Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

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In the present case, there is a security incident categorized as a personal data breach, having occurred an unauthorized access to personal data.

It should be noted that the identification of a personal data breach does not directly imply the imposition of a sanction by this Agency, as it is necessary to analyze the diligence of the controllers and processors and the security measures applied.

Among the principles of processing provided in Article 5 of the GDPR, the integrity and confidentiality of personal data are guaranteed in paragraph 1.f).

On the other hand, the security of personal data is regulated in Articles 32, 33, and 34 of the GDPR, which govern the security of processing, notification to the supervisory authority, and communication to the data subject, respectively.

As previously mentioned, it is presumed that the data controller is the entity that has the true capacity to exercise control over the data, determining the why and how the data should be processed.

Furthermore, according to the diligence dated 19/01/2024 in the file, the business volume (gross margin) of CAJATERUEL during the fiscal year 2022 amounts to 34,000,000 euros.

III

Description of the personal data breach

CAJATERUEL had the electronic banking application called Ruralvía Clásica for the purpose of providing online banking services to its clients.

For a client to enter the Ruralvía Clásica application and log in, they needed to enter their identifier, password, and NIF.

(...)

IV

Unfulfilled obligation: infringement of Article 5.1.f) of the GDPR.

Article 5.1.f) "Principles relating to processing" of the GDPR establishes:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

(...)

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Thus, as stated in the nineteenth proven fact, regarding the personal data to which the attacker had access, the "Final Incident Analysis Report," dated 30/12/2022, indicates that,

(...)

Although the personal data breach was detected on 07/12/2022, prior accesses to that date are confirmed, with the highest volume of accesses occurring between 10 November and 23/11/2022.

In this regard, in the aforementioned report of 30/12/2022, as stated in the eighth and fourteenth proven facts, it is indicated in section 1.4.2, "How was the problem detected or how did it happen?" that:

(...)

The attacker was able to access those personal data of CAJATERUEL customers due to the lack of appropriate technical and organizational measures prior to the occurrence of the personal data breach.

First of all, it should be noted that, as stated in the eleventh proven fact, regarding the causes that allowed the personal data breach, in the "Final Incident Analysis Report," dated 30/12/2022, in section 3, "Cause Analysis," it states that:

(...)

In conclusion, and in accordance with all that has been indicated, it has been established that the violation of the principle of confidentiality that indeed occurred, as the attacker accessed multiple personal data of CAJATERUEL customers, was possible due to the lack of appropriate technical and organizational measures highlighted by the aforementioned vulnerabilities.

The number of customers of the entity affected by the breach amounts to a total of 13, with 11 having

been notified of the security incident that occurred; furthermore, it should be noted that those who had an Electronic Banking agreement had an additional impact due to their ability to access their economic data.

The documentation in the file provides clear evidence that CAJATERUEL violated Article 5.1.f) of the GDPR, "Principles relating to processing," by not properly ensuring the confidentiality and integrity of personal data as a result of the personal data breach that occurred.

In accordance with the evidence available in this proposal for the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to CAJATERUEL, for violation of Article 5.1.f) of the GDPR.

V

Classification for the infringement of Article 5.1.f) of the GDPR

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In accordance with the evidence available and without prejudice to what results from the instruction, it is considered that CAJATERUEL did not properly guarantee the confidentiality and integrity of personal data.

The infringement attributed to the entity is classified under Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9" is subject to sanction, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

And in its Article 72, it considers for the purposes of prescription that they are: "Infringements considered very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe in three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)"

VI

Proposal for sanction for the infringement of Article 5.1.f) of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this Article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, due consideration shall be given to:

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- a) the nature, seriousness, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm they have suffered;
  - b) the intent or negligence in the infringement;
  - c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
  - d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
  - e) any previous infringements committed by the data controller or processor;
  - f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any potential adverse effects of the infringement;
  - g) the categories of personal data affected by the infringement;
  - h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
  - i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
  - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and
  - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.
- In relation to point k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having a data protection officer when not mandatory.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

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In accordance with the transcribed provisions, for the purpose of determining the amount of the sanction to be imposed in this case for the infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR for which CAJATERUEL is held responsible, the following factors are deemed concurrent:

- The nature, severity, and duration of the infringement; the facts revealed affect a basic principle related to the processing of personal data, such as confidentiality and integrity, which the regulation penalizes with the utmost severity as the consequence of the personal data breach allows unauthorized third parties access to personal data, with the harm that this may entail.
- The number of affected parties: (...)
- Regarding the level of damages caused: it must be considered high since, in addition to personal data (...), economic and financial data must be added as users who had access to Electronic Banking would have been able to access this type of data (...). Additionally, it should be noted that this situation

allows access to the data, which can lead to the materialization of the risk of identity theft, among others (Article 83.2.a) of the GDPR).

- The intent or negligence in the infringement. There is a lack of diligence in complying with the obligations imposed by data protection regulations, allowing access by cybercriminals to personal data, thus violating its confidentiality; in this regard, the SAN of 17/10/2007 can be cited, which, although issued before the GDPR came into force, its ruling is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2.b) of the GDPR).
- The activity of the allegedly infringing entity is linked to the processing of personal data of both clients and third parties. In the activity of the claimed entity, the processing of personal data is essential, so given its object and business volume, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

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For the purpose of deciding on the proposal for the fine and its amount, in accordance with the available evidence, taking into account the criteria of Article 83.2 of the GDPR regarding the infringement committed, violation of Article 5.1.f) of the GDPR, it is considered appropriate to propose a sanction of 250,000 euros.

VII

Infringement of Article 32.1 of the GDPR.

Article 32 of the GDPR "Security of processing" establishes that:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. When assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

After reviewing the allegations made by CAJATERUEL, and in light of them, reviewing the documentation in the administrative file and that provided by the claimed party, it is evident that all technical measures and

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organizational security measures whose absence has been proven, directly enabling the breach of personal data, without a violation occurring, in this specific case, of Article 32 of the GDPR, as the absence of other technical and organizational security measures independent of the personal data breach has not been demonstrated.

VIII

Violation of Article 33.1 of the GDPR

Article 33 of the GDPR, "Notification of a personal data breach to the supervisory authority," establishes that,

"1. In the case of a personal data breach, the data controller shall notify the competent supervisory authority in accordance with Article 55 without undue delay and, where feasible, no later than 72 hours after becoming aware of it, unless the breach is unlikely to result in a risk to the rights and freedoms of natural persons. If the notification to the supervisory authority is not made within 72 hours, it shall be accompanied by reasons for the delay.

2. The processor shall notify the controller without undue delay of any personal data breaches of which it becomes aware.

3. The notification referred to in paragraph 1 shall, at a minimum:

a) describe the nature of the personal data breach, including, where possible, the categories and approximate number of data subjects affected, and the categories and approximate number of personal data records concerned;

b) communicate the name and contact details of the data protection officer or another contact point where more information can be obtained;

c) describe the likely consequences of the personal data breach;

d) describe the measures taken or proposed by the controller to remedy the personal data breach, including, where appropriate, the measures taken to mitigate its possible adverse effects.

4. If it is not possible to provide the information simultaneously, and to the extent that it is not possible, the information shall be provided in phases without undue delay.

5. The controller shall document any personal data breaches, including the facts relating to the breach, its effects, and the remedial measures taken. This documentation shall enable the supervisory authority to verify compliance with the provisions of this Article."

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On 21/10/2024, it was agreed to open a period for the practice of evidence in which point 3: It is agreed to require CAJATERUEL to provide the following information and/or documentation:

"That it provides documentation proving that, if applicable, it had instructed or given instructions to its processor for the notification to the AEPD of the personal data breach subject to this sanctioning file. Proof of the aforementioned instruction as well as the terms contained therein and the expression of the date thereof."

The requested party has submitted in response to this request on 05/11/2024, the following documents:

- Email dated 13/12/2022, sent by RSI to CAJATERUEL, in its capacity as processor, in which it communicates the security incident, indicating that they were preparing a report on it and the steps to

be taken (notification to the AEPD and communication to the affected parties) and requesting validation from CAJATERUEL as the data controller. Thus, it communicates that:

“(…)

After conducting the corresponding triage, the incident requires communication to the AEPD and the affected clients, so we have a margin of 72 hours from its notification to communicate it to the supervisory authority.

In this regard, we can submit the notification to the AEPD as processors on behalf of the Entity. For this, we need, please, your consent as a response to this email.”

“(…)

- Email dated 14/12/2022 from CAJATERUEL to RSI in which it responds:

“(…)

Of course

“(…)

- Email dated 15/12/2022, sent by RSI to CAJATERUEL, in which it communicates that the security breach has been notified to the AEPD, in response to the instructions given. Thus, it communicates that:

“(…)

Attached is the proof of notification of the incident to the AEPD...”

“(…)

Analyzing the documentation submitted by CAJATERUEL referred to in the twentieth proven fact, it is determined that the investigated party has provided in response to the evidence practice carried out by this Agency regarding the accreditation of the instructions given to its processor, to proceed with the notification on its behalf to the AEPD of the personal data breach subject to the aforementioned procedure, in accordance with Article 33 of the GDPR.

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For all of which, it must be concluded that, after analyzing the investigated facts, the allegations made by CAJATERUEL and the evidence provided in the procedure, considering the circumstances present in the specific case, the filing of the alleged infringement in relation to Article 33 of the GDPR would be appropriate.

IX

Response to the allegations made regarding the initiation agreement

In relation to the allegations made by CAJATERUEL regarding the initiation agreement, we proceed to respond to them in the order they are presented in their writing:

FIRST. ON THE ACCUMULATION OF PROCEDURES TO THE GROUP ENTITIES.

1. Preliminary considerations

According to CAJATERUEL: “All of the initiation agreements in the files that have just been referenced arise, as indicated, from the security breach analyzed by the Initiation Agreement” and subsequently states that “we are faced with a single fact, referring to a single breach, suffered during the development of the aforementioned tool carried out by RSI in its capacity as data processor, which, however, is fragmented by the AEPD into twenty-six differentiated procedures processed against twenty-six different entities.”

In response to these preliminary considerations, it should be noted that the respondent confuses the fact that the factors that determined the vulnerability are similar in all the procedures initiated by this Agency with the notion that only a single personal data breach has occurred.

We are dealing with incidents that have affected 26 entities that are completely independent, both legally and economically. Each of these entities is responsible for the data processing of its clients in a differentiated manner, and, consequently, there are as many personal data security breaches as there are data controllers who have failed to comply with the obligations imposed by the GDPR. Each entity



is responsible for the processing of its own data and regarding its own clients.

All the entities referred to by the respondent in their allegations had contracted with RSI, (...).

However, the fact that RSI was the same data processor for all the Entities does not mean that one can speak of “a single fact, referring to a single breach.”

Each entity, as the data controller of its clients, autonomously made the decision to contract with RSI as the data processor, for which each of them signed their own data processing agreement, on different dates, signed by different persons with sufficient power for this in each of the rural banks and citing their different data protection delegates, who are not the same.

Furthermore, as also stated in the proven facts, both the “Incident Analysis Report,” dated 09/12/2022, and the “Final Incident Analysis Report,” dated 30/12/2022, were carried out individually for each of the rural banks, containing their own specificities.

Likewise, once the personal data breach occurred, the actions of each of the entities were not the same, with each acting autonomously, both regarding the AEPD (some banks have notified the personal data breach directly and others have entrusted their data processor to carry it out), as well as regarding their respective clients and independently of the actions of the others.

2. On the accumulation of administrative procedure files.

In this allegation, the respondent considers that: “The legal regime of the accumulation of procedures, as well as of processes, in the administrative sphere responds to the central idea of connectivity, that is, that the instruction work that must be carried out is favored by the appreciation of the issue raised as a whole and the possibility that the joint viewing work allows for a better assessment of the elements that allow for the application of the norm to the specific case.”

Article 57 of the LPACAP on the accumulation of procedures establishes that: “The administrative body that initiates or processes a procedure, regardless of how it was initiated, may, ex officio or at the request of a party, order its accumulation to others with which it has substantial identity or intimate connection, provided that it is the same body that must process and resolve the procedure. No appeal shall proceed against the accumulation agreement.”

Consequently, both the administrative body that initiates the procedure and the one that processes it may order its accumulation to other procedures with which it has substantial identity or intimate connection, provided that it is the same body that must process and resolve the procedure.

Article 57 of the LPACAP grants administrative bodies the authority for better management of the procedures they process, allowing their accumulation as long as there is substantial identity or intimate connection among them. Therefore, it is a possibility available to the Administration, not being obliged to proceed with the accumulation if requested, although it is required to decide on the matter with justification, as occurs in the present sanctioning procedure.

3. On the response to the allegation seeking the accumulation of sanctioning procedures.

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In this allegation, the responding party considers that: “The legal regime for the accumulation of procedures, as well as processes, in the administrative sphere responds to the central idea of connectivity, that is, that the instructional work that must be carried out is favored by the overall appreciation of the issue raised and the possibility that the joint viewing work allows for a better assessment of the elements that enable the application of the norm to the specific case.”

It should be responded that the assertions of the responding party are not supported by Article 57 of the LPACAP, nor by any type of jurisprudence or doctrine, in which the purpose of accumulation is attributed to providing the decision-making body with a better assessment of the elements of the case. The institution of accumulation is a technique of administrative simplification that allows the competent body to process and resolve in a main procedure the possibility of accumulating with those others that have substantial identity or intimate connection, for the purpose of simultaneous processing and resolution. The instrumental nature of accumulation is determined by the first limit established by Article 57 of the LPACAP, which is that the body “must be the same body that must process and

resolve the procedure.”

It is a procedural act that cannot be challenged, as established by Article 57 of the LPACAP itself, unlike what is established in Article 112.1 of the same regulation, which does allow for the challenge of other procedural acts when these “directly or indirectly decide the merits of the matter, determine the impossibility of continuing the procedure, produce defenselessness or irreparable harm to legitimate rights and interests.”

However, when the LPACAP excludes the possibility of appeal, it is because it applies to the accumulation of procedures, as a procedural act, none of the assumptions of Article 112.1 of the LPACAP that we have just reproduced.

With these arguments as a starting point, the allegations made by the responding party below must be completely dismissed, to which a specific response will also be given.

A) Existence of "intimate connection" or "substantial identity."

The responding party reiterates the idea referred to in the preliminary considerations of this FIRST allegation, that there was “a single breach of personal data security, notified by each of the responsible parties (directly or through their data processing manager).” It continues to assert that “The connectivity, in this case, derives, therefore, from the fact that it is about determining responsibility for twenty-six legal entities, but for the same fact.”

As already substantiated in the response to the preliminary considerations of this FIRST allegation, it cannot be said that there was a single breach of personal data security, but rather that there have been as many breaches of personal data security as there are entities, all of them independent of each other, each one responsible for.

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its own treatments and regarding its own clients, whose system has suffered a security breach.

For the investigated party, there is a single fact for which responsibilities can be demanded, the security incident in the field of information technology. However, beyond the data breach itself, there has been a loss of confidentiality of the personal data of the clients of each of the entities, which cannot be encompassed as a single fact nor as the same fact.

In the same way, the facts related to the actions taken after each entity became aware of the security breach must be differentiated. Some entities directly notified the AEPD of the breach, while in others the communication was made by the data processor on behalf of each of the data controllers (in different ways and at different times).

Finally, some entities communicated the loss of confidentiality of their personal data to the affected individuals, fulfilling the obligation established in Article 34 of the GDPR, while other entities did not send any type of communication.

All these diverse factual elements determine that it cannot be said that, beyond the same IT vulnerability, there exists an "intimate connection" or "substantial identity" that justifies the accumulation of the proceedings.

Regarding the ruling of the TSJ Castilla-La Mancha cited in the allegations, the following clarifications should be made:

1) There is no compliance with an obligation by several persons jointly, so the assumption of Article 28.3 of Law 40/15 does not apply. According to Article 28.3 of Law 40/2015, of October 1: "When the compliance with an obligation established by a norm with the rank of Law corresponds to several persons jointly, they shall be jointly liable for the infringements that, as the case may be, are committed and for the sanctions that are imposed. However, when the sanction is monetary and it is possible, it shall be individualized in the resolution based on the degree of participation of each responsible party."

In the present case, it cannot be said that there is a joint liability, as it is not a joint obligation of CAJATERUEL with the other entities referred to in its written allegations. The facts constituting the infringement attributed to CAJATERUEL are in its capacity as data controller, in accordance with the provisions of Article 4 of the GDPR, so the compliance with the principles and obligations established

in the GDPR regarding the data processing of its clients corresponds to it individually, not jointly with the other entities, since, moreover, there is no joint liability in the GDPR.

It should be noted that the fine imposed on each entity depends on its own circumstances, such as the number of affected clients or its business volume.

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Neither would the figure of joint controllers of the processing, regulated in Article 26 of the GDPR, be applicable in this case, “when two or more controllers jointly determine the purposes and means of processing, they shall be considered joint controllers of the processing.” The purposes and means of processing have been determined by CAJATERUEL independently of the other entities, in its capacity as the sole controller of the personal data of its clients.

Finally, there is also no concurrence in CAJATERUEL with respect to the other entities, regarding the assumption described in the ruling, in which “the Administration imputes different forms of cooperation or collusion among the three defendants in relation to the same facts.” Here, there can be no talk of any type of cooperation or collusion in the facts; it is simply the responsibility of each of the Rural Banks, and their relationship with the data processor, due to the regime established in the GDPR.

2) The separate processing of the files does not prevent each entity from presenting its allegations. In the ruling of the TSJ of Castilla La Mancha referred to by CAJATERUEL, in the Third Legal Basis, it is stated that the plaintiff requested that all procedures be consolidated in order to adequately exercise the right of defense, “...since they referred to the same facts, and it was expressly warned that processing them separately would constitute a serious violation of the right of defense as it would prevent knowing the allegations of the other parties involved and the documents they might submit, all of which could have implications for the legal qualification of the facts, the determination of the existence or not of an infringement, and of the responsible party.”

The non-consolidation of procedures cannot produce any of the harms mentioned in that paragraph of the ruling.

Regarding the documents submitted to the procedure, those referring to the security incident, a series of documents were submitted by the data processor during the investigation proceedings (let us remember that both the “Security Incident Analysis Report,” dated 09/12/2022, and the “Final Security Incident Analysis Report,” dated 30/12/2022, were prepared individually for each of the rural banks, containing their specificities), access to which for all affected entities has been guaranteed through the sending, upon request, of a copy of the file. Those documents submitted by the entities responsible for the processing, which affect them individually, will be taken into consideration in the corresponding procedure.

3) CAJATERUEL reiterates the need for the “accumulated analysis of the files,” when the ruling of the TSJ of Castilla La Mancha does not include this idea.

The need for accumulation is based on considerations other than those expressed by CAJATERUEL.

As we have analyzed:

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- Reference is made to the access to the documents in the file that may be provided by different responsible parties, a matter that we see is guaranteed here.

- The possibility of establishing joint liability is mentioned, which, as we have reasoned, does not apply under the regime established in the GDPR. We must not confuse joint liability under Article 28 of the LRJSP with the co-responsibility under Article 26 of the GDPR, which also does not apply in this case, since, as we stated, under no circumstances are the other Rural Banks co-responsible for the processing of customer data of the other entities.

- There is no type of cooperation or collusion among the different Rural Banks in the facts. These figures must be ruled out due to the relationship among the Rural Banks, which are independent entities, each responsible for the processing of their customers, nor, as we have previously mentioned, regarding the special regime established by the GDPR concerning the responsible-processor relationship.

B) That the same body is responsible for the processing and resolution of the procedure.

The processing of the various sanctioning procedures corresponds to the same body, as indicated by CAJATERUEL, which does not determine the mandatory nature of the decision to accumulate the procedures, especially when there are no circumstances that imply the defenselessness of CAJATERUEL.

4. Connectivity in the sanctioning field with the guarantees of Articles 24 and 25.1 of the Spanish Constitution.

In this allegation, CAJATERUEL points out that the Constitutional Court has declared that both the substantive principles of Article 25.1 CE and the procedural guarantees of Article 24.2 CE are applicable, with certain nuances, to the exercise of sanctioning power.

4.1. General aspects related to the instruction and its essential functionality.

A) Linkage of the instruction as a consequence of the factual unity.

CAJATERUEL cites a ruling from the Supreme Court, which states that "the initiation of a single sanctioning procedure for the commission of the same infringing act, with the aim of determining the degree of participation of each alleged responsible party in the commission of the infringement and ensuring that the resolution of the file is coherent..." According to CAJATERUEL, "In this case, the appellant argued that, since two files had been processed, each of the responsible parties was unaware of what was in the other that could benefit or harm them. This is a concrete example of the difficulties that arise in terms of the right to defense in cases of separate processing."

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As previously justified, there are as many breaches of personal data as there are data controllers, and we cannot speak of a single infringing act, but rather a series of infringing acts attributable to a number of independent entities concerning the processing for which they are responsible, regarding their clients; nor can we speak of a "degree of participation" among the various entities, nor in terms of the relationship between the data controller and the data processor.

Regarding the documents submitted to the procedure, those relating to the security incident, a series of documents were provided by the data processor during the investigation proceedings, access to which has been guaranteed to all affected entities through the prior request for a copy of the file.

Furthermore, RSI submitted the "Security Incident Analysis Report," dated December 9, 2022, as well as the "Final Security Incident Analysis Report," dated December 30, 2022, in a manner individualized for each of the rural banks, containing their specific details.

Those documents submitted by the entities responsible for the processing, which affect them individually, will be taken into consideration in the corresponding procedure. And any other documents that may constitute evidence relevant to the facts will be duly incorporated into the other official files, in accordance with the provisions of Article 75 of the LPACAP, which states that "the necessary instructional acts for the determination, knowledge, and verification of the facts on which the resolution must be pronounced shall be carried out ex officio."

B) Connectivity as a fundamental prerequisite for the exercise of the right to defense.

According to CAJATERUEL, the breakdown of the continuity of the case, in this instance, of the sanctioning administrative procedure implies that the two procedures become "sealed" and that the evidence, allegations, and expert opinions conducted in one cannot be presented contradictorily in the other.

However, a paragraph from the judgment transcribed by CAJATERUEL is fully applicable to respond to the present allegation: "it is not specified to what extent 'their defense was harmed'," and to reject it,

just as the STS understands "that the decision of the court of first instance is correct, which considers that the initiation of sanctioning files against each of the companies is justified... due to the clear differentiation of the behaviors attributed and the failure to demonstrate that real defenselessness occurred - as reasoned in the contested judgment."

The Constitutional Court in its judgment No. 210/1999, of November 29, states that the constitutionally relevant defenselessness is the situation in which, following the infringement of a procedural norm, one of the parties is prevented from exercising their right to defense by eliminating or limiting their power, either to assert rights and interests for them to be recognized, or to dialectically respond to opposing positions in the exercise of the principle of contracting.

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As an essential characteristic of defenselessness, it must have a material nature and not merely a formal one; that is to say, the existence of a defect or procedural infringement is not sufficient, but rather there must have been an effective and real right to defense (Constitutional Court ruling No. 90/1988, of May 13).

Well, beyond a generic allegation of the possible defenselessness that could arise from the non-accumulation of the proceedings, CAJATERUEL is unable to present a single defect or procedural infringement that has effectively limited its right to defense, when the allegations presented by the affected Rural Banks regarding the security incident are substantially similar, and they have had access to all the documentation that affects them in a common manner. In any case, the instructing body will incorporate into the procedure and inform CAJATERUEL of any other documents that may constitute evidence relevant to the facts.

4.2.- The intimate connection as a requirement for the individualization of responsibility for the same facts.

CAJATERUEL argues that, since we are dealing with a single breach of personal data, the processing of separate proceedings for each of the responsible entities may eventually lead to the determination of diverse responsibilities. The intimate connection translates into the principle of uniqueness in determining the concurrence of the facts when, as CAJATERUEL claims, there are unique facts that result in a single breach of personal data.

As previously reasoned, it cannot be said that there is a single breach of personal data, but rather as many as there are data controllers who have suffered the security incident regarding their clients' data. There cannot be different degrees of responsibility between CAJATERUEL and the other entities. Each of the data controllers will have a degree of responsibility that must be determined individually concerning compliance with data protection regulations, without any type of cooperation in the commission of the infringement among the different Rural Banks that could determine different degrees of responsibility among the entities, as CAJATERUEL asserts.

CAJATERUEL continues its reasoning by stating that "responsibility cannot be individualized without first objectifying the sanctioning reproach and this cannot be projected in 26 proceedings with their own dynamics, their own evidence...". Abstract arguments are still being made, such as objectifying the sanctioning reproach, regarding its own dynamics and "its own evidence," when not even allegations have been made questioning the evidence of the facts, nor has a request for the reception of evidence in the procedure been made.

The fact that "a single investigation procedure" has been processed and that no requirement has been directed against the responsible entities of the treatment but rather with respect to the processor (RSI) does not...

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It assumes the "unitary factual determination," as argued by CAJATERUEL. The fact that the inspection actions required information from the data processor does not determine that a single procedure must subsequently be initiated to clarify administrative responsibilities. It is worth noting that Article 53, "Scope of the investigative activity," of the LOPDGDD does not impose that these must necessarily be carried out in relation to the data controller. Therefore, there is no obligation to investigate all controllers that carry out the processing in question. Inspectors can obtain evidence by requesting information from the data processor if they deem it appropriate.

#### 4.3 Impact on the fundamental right to good administration

According to CAJATERUEL, the accumulation becomes an obligation in case the absence of this could harm the rights of the administered, particularly those recognized in Article 24 of the Constitution, thus violating the right to good administration in accordance with Article 41 of the Charter of Fundamental Rights of the European Union.

In the previous allegations, the differences between the behaviors attributed to the Rural Banks have been motivated, and it has been stated that no type of defenselessness has been caused to CAJATERUEL in the processing of this procedure, having had access to all documents in the file. In fact, CAJATERUEL has not justified any type of defenselessness, nor does it point out any specific fact by which it has been caused defenselessness.

Finally, it should be reiterated that we are not dealing with the same facts, but rather with the same technical problem that caused a security incident in the information system of each of the responsible entities in relation to their processing of personal data (all of them legally and economically independent from each other), which has produced a series of personal data security breaches, not a single personal data security breach, but a personal data security breach in each of the Rural Banks, which result in the alleged commission of a series of infringements by each of the different data controllers in relation to their processing of personal data and the rights and freedoms of their clients.

#### SECOND. THE NON-EXISTENCE OF CULPABILITY IN THE PRESENT CASE

CAJATERUEL has invoked various arguments to justify the absence of culpability in its conduct.

Firstly, it states that it is outside the facts attributed to it, since in the present case, the processing is carried out through a data processor; which, in turn, is the processor of the entities against which the procedures are directed; and that the data protection regulations not only impose obligations related to compliance with the principle of confidentiality and the adoption of necessary security measures on the data controller but, when the processing is carried out on behalf of the controller by a data processor, also on the latter.

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In this regard, it is important to recall that the figure of the data processor arises from the need to respond to phenomena such as the outsourcing of services by companies and other entities, so that in those cases where the data controller entrusts a third party with the provision of a service that requires the processor to process personal data on their behalf, the processing or the operations of the processing are carried out by the processor, in the name and on behalf of the controller, as if it were the latter who is carrying it out.

Therefore, the existence of a data processor depends on a decision made by the data controller, who may decide to carry out certain processing operations themselves or to contract all or part of the processing with a processor.

That is to say, the processor, in order to be one, does not have any own interest regarding the result of the processing subject to the assignment, without prejudice to the financial compensation they receive for the service provided, which is what occurs in the present case. Processors have no own interest; they act on behalf of and in the name of the controller, following their orders and for their purposes, and this is what determines that they are processors from the outset.

This means that the data controller is responsible for actions contrary to the GDPR carried out by their

data processors, unless the latter have acted as true data controllers, deciding on the purposes and means of the processing, a situation that has not occurred in the present case.

Thus, the CJEU ruling of December 5, 2023, issued in case C-683/21, regarding the issue of whether an administrative fine can be imposed under Article 83 of the GDPR on a data controller in relation to the processing operations carried out by a processor, determines that,

“83 Regarding, secondly, the question of whether an administrative fine can be imposed under Article 83 of the GDPR on a data controller in relation to the processing operations carried out by a processor, it should be recalled that, according to the definition provided in Article 4, point 8, of the GDPR, a processor is understood to be ‘the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller.’

84 Given that, as indicated in paragraph 36 of this judgment, a data controller is responsible not only for all personal data processing that they carry out themselves but also for the processing carried out on their behalf, an administrative fine can be imposed on that controller under Article 83 of the GDPR in a situation where personal data is subject to unlawful processing and where it is not the controller, but a processor they have engaged, who has carried out the processing on their behalf.”

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85 Nevertheless, the responsibility of the data controller for the behavior of a processor cannot extend to situations where the processor has processed personal data for its own purposes or where it has processed such data in a manner incompatible with the framework or modalities of processing as determined by the data controller or in a manner that cannot reasonably be considered as having received the consent of the data controller. Indeed, in accordance with Article 28, paragraph 10, of the GDPR, the processor must, in that case, be considered responsible for the processing with respect to that processing.

To this, we must add the recent SAN of February 8, 2024, rec. 0002250/2021, regarding TELEFÓNICA MÓVILES ESPAÑA S.A.U, in which it is determined that,

“Well, the appellant company is the data controller, as it determines the purpose and means of the processing carried out for the purposes indicated in its Privacy Policy: ‘At Movistar, we process customer or user data for the provision of the service, as well as for other purposes that the customer allows or authorizes in the terms informed in this Privacy Policy or in the specific Conditions of each contracted Movistar Product or Service.’

Whereas the companies ATENTO TELESERVICIOS ESPAÑA, S.A.U., CATHPONE-NET, S.L., and THADER TELECOMUNICACIONES S.L. are considered data processors.

What has been stated derives from the contracts signed by the plaintiff with the aforementioned companies.

....

Well, it has not been proven that the aforementioned companies, as data processors for the plaintiff, have determined the purposes and means of the processing, nor have they used the data of the clients of the plaintiff for their own purposes, nor have they interacted with third parties outside the structure and commercial name of the appellant company, but rather they have acted under the name of the plaintiff to fulfill its purposes, using its systems to carry out operations with clients.

Therefore, it is not possible to invoke Article 28.10 of the GDPR for a presumed attribution of responsibility to the processors that would also imply the exoneration of the data controller, that is, of the company here appealing. On the other hand, according to the aforementioned contracts, there is a clause that passes on to them the possible sanctions that the plaintiff company may suffer for non-compliance with obligations regarding data protection.”

On the other hand, the Guidelines 7/2020 of the EDPB on the concepts of “data controller” and “data processor” in the GDPR, version 2.0 Adopted on July 7, 2021, determine that,

“30 Following the line of the fact-based approach, the word ‘determine’ means that the entity that actually exercises a decisive influence over...

The party responsible for the purposes and means of processing is the data controller. Generally, the processing contract establishes who is the determining party (the data controller) and who is the party that follows the instructions (the data processor). Even when the data processor offers a service that is previously defined in a specific manner, they must present the data controller with a detailed description of the service, and the data controller must make the final decision regarding the approval of how the processing will be carried out and request any changes they deem necessary. Furthermore, the data processor cannot modify, at a later time, the essential elements of the processing without the approval of the data controller.

...

39. The question is where to draw the line between the decisions reserved for the data controller and those that can be left to the discretion of the data processor. It is evident that decisions regarding the purpose of the processing must always correspond to the data controller.

40. Regarding the determination of the means, a distinction can be made between essential and non-essential means. Essential means are traditionally and inherently reserved for the data controller. These must be determined mandatorily by the data controller, although the determination of non-essential means can also be left to them. Essential means are closely linked to the purpose and scope of the processing, such as the type of personal data processed ("What data will be processed?"), the duration of the processing ("How long will the data be processed?"), the categories of recipients ("Who will have access to the data?"), and the categories of data subjects ("To whom do the processed personal data belong?"). In addition to being related to the purpose of the processing, essential means are closely tied to the question of whether the processing is lawful, necessary, and proportionate. Non-essential means are related to more practical aspects of the processing itself, such as the choice of a particular type of hardware or software or the decision regarding the specifics of security measures, which can be left to the data processor.

41. Although decisions regarding non-essential means can be left to the data processor, the data controller must still stipulate certain elements in the contract with the processor: for example, regarding the security requirement, the adoption of all measures required under Article 32 of the GDPR may be mandated. The contract must also establish that the data processor will assist the data controller in ensuring compliance with, for example, the provisions of Article 32. In any case, the data controller remains responsible for implementing appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with the Regulation (Article 24). To this end, the data controller must take into account the nature, scope, context, and purposes of the processing, as well as the risks to the rights and freedoms of natural persons. For this reason, the data controller must have complete information about the means used, as this will enable them to make an informed decision regarding the matter. In order for the data controller to demonstrate the legality of the processing, it is advisable to document, in the contract or another legally binding instrument between the parties, the necessary details.

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responsible and the processor, at least the necessary technical and organizational measures.

...

74. The GDPR establishes specific obligations that directly bind processors, as specified in section 1 of part II of these guidelines. It is possible to hold a processor accountable or sanction them when they fail to comply with such obligations or act outside or against the legal instructions of the controller.

...

80. Secondly, the processing must be carried out on behalf of a controller, but not under their direct authority or control. Acting "on behalf of" someone means serving the interests of another and refers to the legal concept of "delegation." In the case of data protection regulation, the role of the processor is to apply the instructions given by the controller, at least concerning the purposes of the processing and



the essential elements of the means. The legitimacy of the processing under Article 6 and, if applicable, Article 9 of the Regulation derives from the activity of the controller, and the processor must only process the data following the instructions given by them. Nevertheless, as previously indicated, the instructions of the controller may leave some margin of discretion regarding how to best serve their interests, allowing the processor to choose the most appropriate technical and organizational means.

81. Acting "on behalf of" someone also means that the processor cannot carry out the processing for their own purposes. As stipulated in Article 28, paragraph 10, the processor infringes the GDPR when they do not adhere to the instructions of the controller and begin to determine their own purposes and means of processing. In these cases, the processor will be considered responsible concerning that processing and may be sanctioned for not having adhered to the instructions of the controller." (the emphasis is ours)

Well, in the specific case being examined, and in light of the documentation in the file, it is noted that, for the provision of IT services, RSI and CAJATERUEL have entered into an individualized and specific "Service Provision Contract" with each of the entities with RSI.

Additionally, they have also entered into the framework of the previous agreement the "Agreement to Modify the Data Protection Clause of the Service Provision Contracts between CAJATERUEL and RSI," an agreement related to CAJATERUEL that was signed on 25/05/2018, A.A.A., on behalf of CAJATERUEL (controller).

In this regard, in this "Agreement to Modify the Data Protection Clause of the Service Provision Contracts between CAJATERUEL and RSI," CAJATERUEL is identified as the controller, and in this Data Protection clause, RSI is identified as the processor.

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"Data Processor" and the Entities as the "Data Controllers."

Furthermore, in this "Amendment Agreement to the Data Protection Clause of the Service Provision Contracts between CAJATERUEL and RSI," this clause defines the processing activities that may be carried out by RSI on behalf of CAJATERUEL, the type of information to be processed, and the categories of data subjects whose data may be processed.

Additionally, it specifies that the security measures that must be applied by RSI to ensure an adequate level of security in accordance with the provisions of Article 32 of the GDPR are those established in Annex B of the "Amendment Agreement to the Data Protection Clause of the Service Provision Contracts between CAJATERUEL and RSI."

It should also be noted that Section 6 of the Agreement on "Liability" states that,

"If the Processor, or where applicable, the contractors, breach this Agreement or the applicable regulations by determining the purposes and means of processing, they will be considered responsible for the processing in relation to such processing.

In the event that a supervisory authority sanctions the Data Controller as a direct consequence of the Processor's failure to comply with the stipulations of this Agreement, the Processor shall indemnify the Data Controller as stipulated in the liability clause of the current framework contract between the parties."

This implies, conversely and in accordance with data protection regulations, the aforementioned judgments, and Guidelines 7/2020, that the Data Controller is liable for the actions carried out by its Data Processor unless the latter determines the purposes and means, which has not been established in the proceedings conducted.

Therefore, in accordance with the above, CAJATERUEL and RSI are the Data Controllers responsible for the processing being carried out, as they have decided to entrust a Data Processor to perform it on their behalf and for their account. They are the entity that has the true capacity to exercise control over the processing of personal data, determining which personal data will be processed on their behalf and for their account, the reasons for processing, and how this data should be processed, as they define the purpose of the personal data processing that their activity entails and choose the means they

deem appropriate.

And in accordance with all the above, in the specific case, CAJA XXX is responsible for the infringement of the GDPR even if it occurred within its Data Processor. This is independent of the actions and liability that third parties may have incurred, as the negligence or illegal actions of third parties do not exclude their own.

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In this regard, the Agreement on Initiation itself indicates in section 4 related to the Obligations of the Data Controller that:

“Corresponds to the data controller:

- a) To provide the Data Processor with the necessary data for the provision of the service.
- b) If legally required, to carry out an impact assessment on the protection of personal data for the processing operations to be carried out by the Data Processor.
- c) To carry out the necessary prior consultations.
- d) To ensure, both prior to and during the entire processing, compliance with the GDPR by the Data Processor.
- e) To supervise the processing, including the conduct of inspections and audits.”

This is directly related to the principle of proactive responsibility of the data controller provided for in Article 5.2 of the GDPR, which establishes that “the data controller shall be responsible for compliance with the provisions of paragraph 1 and able to demonstrate it (‘proactive responsibility’). This means that the controller must ensure the effective application of the principles of processing both at the time of determining the means of processing and during the processing itself, whether the processing of personal data is carried out directly or entrusted to a data processor to carry it out on its behalf (for the purposes of data protection law, it is the same), through the articulation of a series of technical and organizational measures of all kinds, which must be subject to periodic review and updating. This implies that the aforementioned controller is the one who assumes its own responsibility by directing, reviewing, and coordinating the processing, including that of the personnel and that of the data processor providing services to it.

Opinion 3/2010, from the Article 29 Working Party (WP29) -WP 173- issued during the validity of the repealed Directive 95/46/EC, but whose provisions are applicable today, states that the “essence” of proactive responsibility is the obligation of the data controller to apply measures that, under normal circumstances, ensure that the rules on data protection are complied with in the context of the processing operations and to have available documents that demonstrate to the data subjects and the supervisory authorities what measures have been adopted to achieve compliance with the data protection rules.

For these purposes, consideration is given to what is stated in the following recital 74 of the GDPR: “Responsibility of the data controller must be established for any processing of personal data carried out by him or on his behalf. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons.”

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Completing the above and in development of Article 5.2 of the GDPR, it is necessary to cite Article 24 and 25 of the same legal text, indicating that the latter regarding “Data protection by design and by default” states that the fundamental right to the protection of personal data is much more than mere

technology, as its focus is on the risks to the rights and freedoms of the data subjects arising from the processing of personal data.

“1. Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity that the processing entails for the rights and freedoms of natural persons, the data controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing, in order to comply with the requirements of this Regulation and protect the rights of the data subjects.

2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data that are necessary for each specific purpose of the processing are processed...”

CAJATERUEL seems to argue that the responsibility lies with the data processor with whom it signed a contract, and under which it was obliged to implement the appropriate security measures according to the risk; however, it is important to remember that the personal data breach occurred as a result of CAJATERUEL's decision (...), signing the corresponding data processing agreement with RSI where CAJATERUEL established the appropriate conditions.

Moreover, this is in addition to what this Agency has stated in previous paragraphs regarding that CAJATERUEL has determined the purposes and means of the processing, that it is the data controller, that it is responsible for the personal data breach in this case due to the processing actions carried out by its data processor on its behalf, and that it is subject to the obligations of the GDPR, especially regarding proactive responsibility.

This is the responsibility of CAJATERUEL since it is the data controller and is obliged to integrate and deploy data protection within all that constitutes its organization, in all its areas of action, whether affecting its employees or its data processors. It must be kept in mind that ultimately the determining purpose is to guarantee the protection of the data subject, as the focus is on the risks to the rights and freedoms of the data subjects arising from the processing of personal data.

Therefore, the data controller must carry out a risk analysis of the rights and freedoms of natural persons in data processing, implementing appropriate technical and organizational measures to apply the...

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principles of data protection and integrate the necessary guarantees in the processing, in order to comply with the requirements of the GDPR, being able to demonstrate that the processing is in accordance with the provisions of the aforementioned regulation. And in light of the principle of proactive responsibility (art 5.2 GDPR), the data controller must be able to demonstrate that it has taken into account all the elements provided for in the GDPR.

Therefore, all of this merely reflects a lack of diligence on the part of the investigated entity in ensuring adequate security relative to the risk of the data processing it carries out. In this regard, it should not be forgotten that the affected database contains personal data of thousands of customers, which constitutes large-scale processing, to which, in turn, access is obtained from web applications, that is, from the internet, with a very significant exposure surface, posing greater risks for the data subjects, which requires appropriate technical and organizational measures of all kinds, including security measures, suitable for this purpose and specifically aimed at ensuring that there is no unauthorized access to such personal data.

As has been demonstrated and argued throughout this sanctioning procedure, it is considered that appropriate security measures were not implemented in this case to ensure adequate security relative to the risk, even if there had not been a personal data breach, the security of the personal data of the customers, which determined in this case an unauthorized access to the personal data of the

customers of CAJATERUEL. Therefore, responsibility is not being demanded solely as a consequence of a result caused by a cyberattack. Rather, it has been made evident in the context of a violation of the security of personal data.

It is much more than that; it is a failure to comply with the obligations imposed by the GDPR.

Therefore, it is emphasized that the data controller must establish, in its relationship with the data processor, clear modalities for such assistance and provide precise instructions to the data processor on how to comply with them appropriately and document it beforehand through a contract or another (binding) agreement and also subsequently during the validity of the same and verify at all times throughout the development of the contract its compliance in the manner established therein.

It suffices to bring to mind the content of STS 1562/2020, which states the following:

“In this regard, the Supreme Court ruling of June 5, 2004, which confirms, in cassation for the Unification of Doctrine, that of this AN of October 16, 2003, echoes the argument made by this Chamber regarding the differentiation of two controllers based on whether the decision-making power is directed at the file or at the data processing itself. Thus, the file controller is the one who decides the creation of the file and its application, as well as its purpose, content, and use, that is, who has decision-making capacity over all the data recorded in that file. The data processor, however, is the subject to whom decisions regarding the specific activities of a particular data processing can be attributed, that is, regarding a specific application. This would involve all those cases in which the decision-making power must be differentiated from the material execution.”

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of the activity that integrates the processing. With this, as the Supreme Court (STS) also argues in its ruling of April 26, 2005 (appeal for unification of doctrine 217/2004), the Spanish legislator aims to adapt to the requirements of Directive 95/46/EC, which seeks to provide a legal response to the increasingly frequent phenomenon of the so-called outsourcing of IT services, where multiple operators act, many of whom are insolvent, created with the aim of seeking impunity or irresponsibility for those who follow in the subsequent links of the chain. Currently, the new Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data (which repeals Directive 95/46/EC, and is directly applicable from May 25, 2018) also distinguishes between the roles of the data controller and the data processor. The former is defined in paragraph 7) of Article 4 as "a natural or legal person (...) who determines the purposes and means of the processing." And the data processor is defined in paragraph 8) of the same Article 4 as one who "processes personal data on behalf of the data controller."

This is in relation to Articles 24 and 28 of the same European Data Protection Regulation. The data controller and the data processor are undoubtedly also responsible for infringements regarding data protection, in this new regulatory framework, in accordance with the provisions of Article 82.2 of the aforementioned Regulation (EU) 2016/679, which states: "Any controller participating in the processing operation shall be liable for damages caused where that operation does not comply with the provisions of this Regulation. A processor shall be liable for damages only where it has not complied with the obligations of this Regulation specifically directed to processors or has acted outside or against the lawful instructions of the controller." It follows from all of the above that the presence, in this case, of a data processor ZZZZ does not exempt the entity XXXX, now the appellant, from liability, despite the strength of the clauses contained in the contract and its annex signed by both companies (proven facts 9 and 10) regarding the personal data processed, which were for the purpose of carrying out an advertising campaign regarding car and motorcycle insurance marketed by the (XXXX), ultimately benefiting said XXXX, being the acting entity that ultimately determines the purposes and means of the repeated data processing, and therefore cannot be exempted from liability.

The STS continues, regarding the possible exemption from liability alleged concerning what was

agreed in the "data processor" contract, as follows:

"The sanctioned conduct of obstructing or preventing XXXX from exercising its client's right to object to the processing of their data is manifested in that said company did not adopt any measures or precautions to prevent the sending of advertising to its client's email addresses by those companies to which it entrusted the execution of the advertising campaigns."

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The adoption of the necessary measures or precautions to ensure the effectiveness of the right to object to the processing of their data by XXXX, as the data controller, remains in effect even if the advertising campaigns are not carried out using data from their own files, but rather with databases from other companies contracted by XXXX. In this case, it was established that the appellant did not inform the companies with which it contracted advertising services of the complainant's objection to receiving advertising from the Mutual, nor did it ultimately take any measures to ensure the exclusion of its client from the advertising mailings contracted with third parties.

Regarding the application of the principle of culpability in the context of the sanctioning law regulated by the GDPR, the investigated entity invokes the doctrine established by the CJEU ruling of December 5, 2023 (case C-807/21, Deutsche Wohnen SE and Staatsanwaltschaft Berlin).

It is pertinent to ask what parameters of due diligence the investigated entity should have observed in relation to the examined conduct. The answer is that the diligence it should have observed is that which was necessary to fulfill the obligations imposed by Articles 5.2, 24, and 25 of the GDPR, in light of the doctrine of the National Court and the jurisprudence of the Supreme Court.

The SAN ruling of October 17, 2007 (rec. 63/2006) is fully applicable to the case, which, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, states:

"(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard."

Furthermore, the National Court in matters of personal data protection has declared that "simple negligence or failure to comply with the duties imposed by law on those responsible for files or data processing to exercise due diligence is sufficient..." (Judgment of the National Court of June 29, 2001).

Regarding the allegation that the breach of personal data occurred within the framework of the data processing for which RSI was responsible, to the extent of carrying out the investigative actions exclusively with that entity, it should be noted that the preliminary investigative actions are precisely carried out to clarify the facts and circumstances of what occurred, gathering more information in order to determine whether or not a possible infringement of data protection regulations exists. In this sense, the initiation of preliminary investigations and their execution, which is the authority of the AEPD, does not prejudice anything but allows for the determination of the facts that occurred and the gathering of evidence.

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the necessary information wherever it may be found to determine whether there are indications of an

infringement or not. Even after such an investigation, it may be the case that the proceedings are archived on the grounds that, in light of the information gathered, there are no indications of an infringement. This has not occurred in the present case.

Consequently, the allegations must be dismissed since the investigated entity has infringed the obligations imposed by the GDPR as the data controller for the processing carried out on its behalf and for its account, in relation to the responsibilities required of all data controllers by Article 24 of the GDPR. Therefore, the allegations must be dismissed, noting that the arguments presented do not undermine the essential content of the infringement declared nor do they constitute sufficient justification or exculpation.

### THIRD. ON THE IMPACT ON THE PRINCIPLES OF SANCTIONING LAW DERIVED FROM THE INTERPRETATION MADE BY THE AEPD

CAJATERUEL considers that it has not committed any infringement of Data Protection regulations, much less the simultaneous infringement of Articles 5.1 f) and 32 of the GDPR, as the triple identity of subject, fact, and protected legal interest coincides. There is no doubt that in this case the principle of non bis in idem should apply, with the imposition of a sanction only for Article 5.1.f) as it is the more serious of the two alleged infringements.

And in the event that the AEPD finds a violation, it should subsidiarily recognize a medial concurrence as one of the infringements is subsumed and embedded in the other, according to what is provided in Article 29.5 of the LRJSP, "When the commission of one infringement necessarily derives from the commission of another or others, only the sanction corresponding to the most serious infringement committed shall be imposed."

"1. Violation of the principle of non bis in idem in the application of Articles 5.1 f) and 32 of the GDPR"

In this regard, and concerning this allegation made by CAJA XXX against the initiation agreement, it should be noted that since the archiving of the initially charged infringement of Article 32 of the GDPR has been proposed, it is no longer necessary to respond to these allegations, as the charge of Article 5.1.f) of the GDPR no longer coincides with Article 32 of the GDPR.

### FOURTH. ON THE ALLEGED VIOLATION OF ARTICLE 32.1 OF THE GDPR.

CAJATERUEL has stated that the AEPD considers the alleged violation of Article 32 of the GDPR to be "evidenced," that is, it considers the supposed insufficiency of the security measures adopted to be evident as a result of the occurrence of the personal data breach, making exclusive reference to the report on the breach contained in the administrative file, while overlooking all the measures adopted as well as the audit carried out in the initiation agreement.

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that there is a misinterpretation of what occurred in the RSI systems, by indicating that subsequent to the aforementioned audit, modifications had been introduced in the SSO process for access to the NBE.

Well, as indicated, upon reviewing the allegations made by the responding party, and in consideration of the same, reviewing the documentation in the administrative file and that provided by the responding party, it is evident that all the technical and organizational security measures whose absence has been proven, have had a direct impact on the personal data breach, without there having been a violation, in this specific case, of Article 32 of the GDPR, as the absence of other independent technical and organizational security measures from the personal data breach has not been substantiated.

Regarding the sufficiency of the security measures, in relation to the breach of Article 5.1.f) of the GDPR, we refer to what has already been indicated in legal basis IV of this resolution proposal, where it is explained and detailed why they were neither sufficient nor appropriate.

Furthermore, we will indicate that it is true that it is recorded that, both prior to and subsequent to the security incident, the investigated entity conducted audits and reviews by third-party specialists aimed at detecting vulnerabilities concerning the security of the information systems; but it is also true that despite the existence of such investigations, controls, and verifications, they were unable to locate and

reveal the existing vulnerabilities, as is recorded in the proven facts.

CAJATERUEL claims that RSI has various certifications in the field of security, referenced in the third proven fact of this resolution proposal.

Article 28 of the GDPR, on the Processor, in its paragraph 5, establishes that:

"5. The adherence of the processor to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may be used as an element to demonstrate the existence of the sufficient guarantees referred to in paragraphs 1 and 4 of this article."

In this regard, to demonstrate that the processors provide the suitability and guarantees required by the GDPR, adherence to a certification mechanism can be used as an additional element to substantiate the existence of sufficient guarantees to apply appropriate technical and organizational measures to protect personal data.

And this is because, in addition to the fact that a processor has been certified in data protection, this certification does not absolutely prove that the sufficient guarantees in relation, in this case, to the provision of Article 28.1 of the GDPR, have been implemented and are acting effectively throughout the entire processing cycle and the time during which the latter is taking place.

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In matters of data protection, this type of instrument serves as a voluntary compliance mechanism in which specific rules are established to contribute to the proper application of the GDPR and the LOPDPGDD.

According to the GDPR, the data controller must adopt appropriate measures, including the selection of processors, in such a way as to guarantee and be able to demonstrate that the processing is carried out in accordance with the GDPR (principle of active accountability).

It is true that the certifications that the data processor RSI appears to possess are mentioned in the data processing agreement; however, let us note that all the certifications listed in the third proven fact are not the certificates provided for in either Article 28 or Article 42 of the GDPR. They are not certifications in data protection, but rather certifications of information security or related to other obligations that must be fulfilled by the controller or the processor based on regulations other than data protection.

Thus, in the "Amendment Agreement of the Data Protection Clause of the Service Provision Contracts," signed between CAJATERUEL and RSI, in its "Annex B - Security Measures to the Amendment Agreement of the Data Protection Clause of the Service Provision Contracts," it is indicated that RSI holds the following certifications:

(...)

Moreover, the mention of these certifications in the data processing agreement is not accompanied by the certification itself for the purpose of verifying that it has indeed been certified and to see exactly what it is certified for, at what moment it was certified, and whether the certification was still valid at the time of the personal data breach (since certifications have a validity period); this certification is not for data protection.

In this regard, the report of the Legal Cabinet 170/2018 of the AEPD establishes the difference between information security and the protection of personal data. Thus, it is indicated that, "Prior to analyzing the specific issue raised in the consultation, this Legal Cabinet finds it appropriate to make a prior reference (...).

Regarding information security, it encompasses the set of techniques and measures aimed at ensuring the confidentiality, integrity, and availability of information and data important for any organization, regardless of the format they may have. (...)

On the contrary, the protection of personal data of natural persons is configured as a true fundamental right that finds its foundation in Article 18.4 of the Spanish Constitution, according to which 'the law will limit the use of computing to guarantee honor and personal intimacy and...'"

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"familiar to citizens and the full exercise of their rights." This has been recognized by our Constitutional Court, highlighting in Judgment 94/1998, of May 4, that the aforementioned Article 18.4 "not only entails a specific instrument for the protection of citizens' rights against the wrongful use of information technology, but also enshrines an autonomous fundamental right to control the flow of information concerning each person - 'privacy' according to the neologism stated in the Explanatory Memorandum of the LORTAD - whether or not it belongs to the strictest realm of intimacy, in order to preserve the full exercise of their rights."

This is reflected in the Preamble of the Organic Law Project on Personal Data Protection and Guarantee of Digital Rights, which is transcribed below for its clarity:

"The protection of natural persons in relation to the processing of personal data is a fundamental right protected by Article 18.4 of the Spanish Constitution. Thus, our Constitution was a pioneer in recognizing the fundamental right to personal data protection when it provided that 'the law will limit the use of information technology to guarantee the honor and personal and family intimacy of citizens and the full exercise of their rights.' It echoed the work developed since the late 1960s in the Council of Europe and the few legal provisions adopted in countries around us.

The Constitutional Court stated in its Judgment 94/1998, of May 4, that we are faced with a fundamental right to data protection which guarantees the individual control over their data, any personal data, and over its use and destination, to prevent the illicit trafficking of the same or harm to the dignity and rights of those affected; thus, the right to data protection is configured as a faculty of the citizen to oppose the use of certain personal data for purposes other than those that justified its acquisition. For its part, in Judgment 292/2000, of November 30, it considers it as an autonomous and independent right that consists of a power of disposition and control over personal data that empowers the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party may collect, and that also allows the individual to know who possesses that personal data and for what purpose, being able to oppose such possession or use.

At the legislative level, the specification and development of the fundamental right of protection of natural persons in relation to the processing of personal data took place in its origins through the approval of Organic Law 5/1992, of October 29, regulating the automated processing of personal data, known as LORTAD. Organic Law 5/1992 was replaced by Organic Law 15/1999, of December 5, on personal data protection, in order to transpose Directive 95/46/EC of the European Parliament and of the Council, of October 24, 1995, concerning the protection of natural persons in relation to the processing of personal data and the free movement of such data. This organic law represented a second milestone in the evolution of the regulation of the fundamental right to data protection in Spain and was complemented by an increasingly abundant jurisprudence from the contentious-administrative jurisdictional bodies.

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On the other hand, it is also included in Article 8 of the Charter of Fundamental Rights of the European Union and in Article 16.1 of the Treaty on the Functioning of the European Union. Previously, at the European level, the aforementioned Directive 95/46/EC had been adopted, which aimed to ensure that the guarantee of the right to the protection of personal data did not constitute an obstacle to the free movement of data within the Union, thus establishing a common space for the guarantee of the right that, at the same time, ensured that in the case of international data transfers, their processing in the destination country was protected by safeguards adequate to those provided for in the directive itself. And in this same sense, Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and



on the free movement of such data, which repeals Directive 95/46/EC (General Data Protection Regulation, GDPR), states that its purpose is “to protect the fundamental rights and freedoms of natural persons and, in particular, their right to the protection of personal data” (Article 1.2), highlighting in its Recital 1 that “the protection of natural persons in relation to the processing of personal data is a fundamental right” and in its Recital 10 that “to ensure a consistent and high level of protection of natural persons and to eliminate obstacles to the free movement of personal data within the Union, the level of protection of the rights and freedoms of natural persons with regard to the processing of such data must be equivalent in all Member States. It must be ensured throughout the Union that the application of the rules for the protection of the fundamental rights and freedoms of natural persons in relation to the processing of personal data is consistent and homogeneous.” Consequently, the right to the protection of personal data of natural persons is a fundamental right and, therefore, situated at the highest level of legal protection, which is currently directly regulated by community legislation, with the aforementioned GDPR establishing a set of principles, rights, obligations, and an organizational structure aimed at guaranteeing this fundamental right. Among these, information security appears as an additional obligation for data controllers and processors, who must implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which will include, among other factors, “the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services” and “the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident” (Article 32.2. b) and c) of the GDPR).

Therefore, there is no doubt that the guarantee of the security of personal data acquires special significance regarding its protection, but this is not limited exclusively to the realm of the security of that information, as the protection of personal data has a much broader scope that encompasses, as we said, a set of principles, rights, and obligations that is much wider.

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This issue is substantial since the certification mentioned in the service contract does not serve as an element to “demonstrate the existence of sufficient guarantees referred to in paragraphs 1 and 4” of Article 28 of the GDPR, as it does not pertain to data protection. The difference in approach between mere information security and data protection is extremely important, as while the former focuses exclusively on information security, the risk-based approach of the GDPR (which is much broader as it centers on the risks to the rights and freedoms of data subjects arising from the processing of personal data) focuses on natural persons, with security being an additional obligation within the GDPR to achieve the protection of natural persons in the terms of recitals, notably 1 and 10, as well as in accordance with the provisions of Article 1 of the GDPR.

Within the management of GDPR compliance lies risk management, on which information security pivots, not the other way around.

(...)

CAJATERUEL claims that the security measures initially implemented by RSI are included in the service contract signed with RSI and that the attackers may have legitimate credentials for access and that the attack is not due to the weakness of the implemented systems.

As a preliminary matter, we must refer to the proven facts and the description of the personal data breach to understand how and why the personal data breach occurred.

Regarding the security measures included in the “Amendment Agreement for the Data Protection Clause of Service Contracts,” when referencing security measures, there is a referral to those listed in Annex B - Security Measures to the Amendment Agreement for the Data Protection Clause of Service Contracts.

Well, from a detailed examination of the citation of the same, since we are unaware of the description of the specific measures implemented, we can again verify that they are measures that refer generally to information security and not to data protection (...). A policy is a central and guiding instrument of an

organization in which the responsible party addresses its objectives and establishes procedures, resources, and mechanisms to carry it out, which requires subsequent detailed development. It is not the same to address mere information security as it is to address the protection of a fundamental right such as data protection, given the focus and purpose of each.

Furthermore, the fact that a service contract includes a list of measures (in this specific case, information security measures) does not imply that they guarantee appropriate security as determined by Article 5.1.f) of the GDPR, because one must consider the focus on the protection of the rights and freedoms of data subjects, and the implemented measures do not have to.

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what serves to fulfill such an objective if they have not been designed and implemented from the perspective required by the GDPR.

#### FIFTH. ON THE ALLEGED VIOLATION OF ARTICLE 5.1(f) OF THE GDPR.

CAJATERUEL considers the contradiction in which the Initial Agreement incurs by stating that “the identification of a personal data breach does not imply the direct imposition of a sanction by this Agency, as it is necessary to analyze the diligence of controllers and processors and the security measures applied,” when subsequently it understands that Article 5.1(f) has been violated as a consequence of the mere fact that the breach has occurred.

On this particular matter, we refer to the legal basis IV explaining the concurrence of the violation of Article 5.1(f) of the GDPR in this specific case, where it is detailed that the violation has not been committed by the mere result of loss of confidentiality, even though it is a result-based violation. The Judgment of the Constitutional Court (STC) 292/2000, in its analysis of the “content” of the fundamental right to data protection, refers to the power of disposition and control that belongs to the data subject over the possible use or uses of their data by a third party. Legal Basis seventh states: “[...] it turns out that the content of the fundamental right to data protection consists of a power of disposition and control over personal data that enables the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party may collect, and that also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or use. These powers of disposition and control over personal data, which constitute part of the content of the fundamental right to data protection, are legally specified in the ability to consent to the collection, obtaining, and access to personal data, its subsequent storage, as well as its possible use or uses by a third party, whether the State or a private individual.” The obligation of confidentiality that Article 5.1(f) of the GDPR imposes on the data controller is an obligation of result, such that for the provision to be considered violated, the confidentiality of the data must be breached.

As specified by the Supreme Court ruling of 15/02/2022 (rec. of cassation 7359/2020):

“The obligation to adopt the necessary measures to guarantee the security of personal data cannot be considered an obligation of result, which implies that once a personal data breach occurs to a third party, there is liability regardless of the measures adopted and the activity carried out by the data controller or processor.

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In obligations of result, there is a commitment consisting of achieving a specific objective, ensuring the achievement or proposed result, in this case, guaranteeing the security of personal data and the non-existence of breaches or security failures (...)

It should be noted that the data controller incurs in contradiction when, on one hand, it considers that

there has been no violation of data protection regulations and estimates that everything should be redirected to the filing of the case, while on the other, it confirms and indicates that it is evidenced in the file "that the attacker could access the data, but in no case alter it, ..."; (...)

Regarding the allegations reiterated by the responding party that the violations attributed concerning Article 5.1(f) and 32 of the GDPR are identical since we are faced with the same fact subject to double attribution, we refer to what has already been indicated in previous legal bases regarding the proposal to file the violation of Article 32 of the GDPR.

In light of the above, it is evidenced that CAJATERUEL has violated the principle of confidentiality and integrity of the data, a principle enshrined in Article 5.1(f) of the GDPR, a violation classified in Article 83.5(a) of the GDPR.

#### SIXTH. ON THE ALLEGED VIOLATION OF ARTICLE 33 OF THE GDPR

Regarding the allegations made by the complainant concerning the attribution of Article 33 of the GDPR, a response is no longer necessary, as, as stated in the proven facts and in the previous legal bases, the filing of the initially attributed violation is proposed in light of the specific circumstances of the previously expressed case.

#### SEVENTH. VIOLATION OF THE PRINCIPLE OF PROPORTIONALITY IN THE DETERMINATION OF SANCTIONS.

CAJATERUEL has alleged that in the event that it is considered that there has been a violation of data protection regulations, particular consideration should be given in determining the sanction that may be imposed by applying the principle of proportionality.

It should be noted that Article 83.1 of the GDPR provides that "Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the violations of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive."

Fines, therefore, as deduced from the invoked provision, must be effective, proportionate, and dissuasive to achieve the intended purpose of the GDPR.

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It is true that for this system to function with all its guarantees, it is necessary for several elements to be deployed in an integral and complete manner. The application of rules foreign to the GDPR regarding the determination of fines in each of the Member States, applying their national law, whether due to aggravating or mitigating circumstances not provided for in the GDPR - or in the LOPDGDD in the Spanish case as allowed by the GDPR itself - would undermine the effectiveness of the system, which would lose its meaning, its teleological purpose, and the will of the legislator, resulting in fines imposed for different infringements ceasing to be effective, proportionate, and deterrent. In this way, the interested parties would also be deprived of the effective guarantee of their rights and freedoms, weakening the uniform application of the GDPR. The mechanisms for protecting the rights and freedoms of citizens would be diminished, which would be contrary to the spirit of the GDPR.

The GDPR is endowed with its own principle of proportionality that must be applied in its strict terms. Regarding the principle of proportionality of sanctions, the National Court has pointed out in numerous rulings that the principle of proportionality cannot be exempt from judicial review, as the margin of appreciation granted to the Administration in imposing sanctions within the legally established limits must be developed by weighing, in any case, the concurrent circumstances, in order to achieve the necessary and due proportion between the alleged facts and the responsibility required, given that any sanction must be determined in accordance with the seriousness of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the fact. Thus, proportionality constitutes a normative principle that is imposed on the Administration and that reduces the scope of its sanctioning powers.

Well, in accordance with the circumstances present in this case, which have been meticulously and appropriately evaluated, this resolution does not violate the principle of proportionality in the

determination of the imposed sanctions, resulting in a balanced and proportionate response to the seriousness of the infringement committed, the importance of the facts, as well as the circumstances taken into account to grade the sanction, without any reasons being appreciated that further justify the reduction made, especially considering the amount to which such sanctions can ascend in accordance with Article 83.5 of the GDPR, which provides for an infringement of Article 6.1 of the GDPR, “with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

In the present case, the entity under investigation is a large company within its sector of activity; in accordance with the proven fact twenty-first, its turnover (gross margin) during the financial year 2022 amounted to €24,697,000, resulting in the fine imposed for the infringement of Article 5.1(f) of the GDPR amounting to €250,000, which would be in the lower range of the possible administrative fine that could be imposed on the data controller and far from the maximum 4% of the total annual global turnover of the previous financial year, considering the turnover.

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- CAJATERUEL considers, regarding the circumstance derived from the nature, severity, and duration of the infringement, that the mere reference to the provision that is the subject of the infringement is taken as an aggravating factor.

However, such an argument cannot be accepted as it is inconsistent; in fact, what is being highlighted is that the infringement of Article 5.1.f) affects one of the basic principles on which the regulations on the protection of personal data are based, confidentiality, and this violation is exacerbated and aggravated by the number of individuals affected by the incident, the damages caused (irreversible loss of power and control over personal data by the clients), and its duration, since (...).

- CAJATERUEL considers, regarding the intent or negligence in the infringement, that the lack of diligence in its actions is exclusively due to its status as a financial entity, and, in truth, the aforementioned statement is surprising.

Taking into account that CAJATERUEL's conduct includes the element of culpability, which is essential to impose sanctioning responsibility, in this case, it is further specified in a very serious lack of diligence in complying with the principle of confidentiality of personal data, as has been demonstrated throughout the proceedings.

RSI has indicated that:

(...)

Furthermore, the lack of diligence demonstrated in the infringing conduct for which it is held responsible must be classified as very serious; CAJATERUEL is obliged under Article 5.2 of the GDPR to carry out the appropriate activities to comply with the principles of data protection, particularly the principle of confidentiality, and to be in a position to demonstrate its compliance.

- CAJATERUEL considers that taking its banking activity into account as an aggravating factor is a sort of objective aggravating factor; firstly, it is not a matter related to the specific activity carried out by a particular entity, but rather that the aggravating factor provided for in Article 76.2.b) of the LOPDGDD operates when the infringer's activity is linked to the processing of personal data, and it is obvious that, in relation to the present data controller, its activity, in this specific banking case, is clearly linked, directly, to multiple processing of personal data affecting thousands of clients.

In this regard, the National Court has considered it correct to appreciate the aggravating factor provided for in Article 76.2.b) of the LOPDGDD whenever the aforementioned link exists, and it has considered this in numerous rulings, including the ruling dated 04/07/2024, (rec. 382/2022) which states regarding the aforementioned circumstance that:

“As well, the aggravating factor of the continued nature of the infringement, included in Article 76.2.a) of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights, should be appreciated, referring to it when we analyze the application of the GDPR to the infringement at hand. As well, the appreciation of the link between the infringer's activity and the

processing of personal data (Article 72.2.b) of Organic Law 3/2018, of December 5), is due to the fact that the activity of the appellant is linked to the processing of data from both clients and third parties; this link is well-known since the entity, due to its activity, is in constant contact with clients and third parties, processing a large volume of data, which imposes a greater duty of diligence.”  
(the underlining is ours).

Finally, CAJATERUEL considers that the AEPD, in modulating its responsibility, has not taken into account elements to mitigate it, such as evidentiary elements that demonstrate compliance with the highest standards in terms of security, nor the fact that the measures adopted were subjected to a system of periodic auditing, or that RSI resolved the vulnerability that constituted the security breach; it is sufficient to refute the statements made by referring to the content of the proven facts and regarding the last issue raised, to refer to what the data processor itself indicates in its notification of the personal data breach, dated 14/12/2022, and the document of 10/01/2023 conveying the final report, in which it responds to the following questions:

- Could the breach have been avoided by adopting any additional security measures?

Yes

- Did the incident occur due to any failure, deficiency, or non-compliance with implemented security measures?

Yes

And regarding the actions taken after the incident:

- Have you adapted/improved your security procedures and policies?

No

Therefore, the allegation made regarding the violation of the principle of proportionality cannot be accepted.

In light of the above, the following

#### PROPOSAL FOR RESOLUTION

is issued that the Director of the Spanish Agency for the Protection of Data sanctions CAJA RURAL DE TERUEL, S.C.C. with NIF F44002756, for the infringement of Article 5.1.f) of the GDPR, classified in Article 83.5.a) of the GDPR, with a fine of €15,000 (fifteen thousand euros).

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That by the Director of the Spanish Agency for Data Protection, CAJA RURAL DE TERUEL, S.C.C. with NIF F44002756, is archived for the infringement of Article 32.1 of the GDPR, classified under Article 83.4.a) of the GDPR.

That by the Director of the Spanish Agency for Data Protection, CAJA RURAL DE TERUEL, S.C.C. with NIF F44002756, is archived for the infringement of Article 32.1 of the GDPR, classified under Article 83.4.a) of the GDPR.

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, you are informed that you may, at any time prior to the resolution of this procedure, make a voluntary payment of the proposed sanction, which will entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at €12,000 (twelve thousand euros) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, you must make it effective by depositing it into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. You must also send the proof of payment to the General Sub-Directorate of Inspection

to proceed to close the file.

In virtue of the above, you are notified of the preceding, and it is made clear to you that you have a period of TEN DAYS to present any arguments you consider in your defense and to submit any documents and information you deem pertinent, in accordance with Article 89.2 of the LPACAP.

R.R.R.

INSPECTOR/INSTRUCTOR

ANNEX

Index of the file EXP202400058

(...)

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SECOND: On December 20, 2024, the defendant has proceeded to pay the sanction in the amount of €12,000.00, making use of the reduction provided in the previously transcribed resolution proposal.

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THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the resolution proposal.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be determined in the notification of initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

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The percentage of reduction provided in this section may be increased by regulation.”

### III

#### Voluntary Payment

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified resolution proposal allowed for the voluntary payment of the proposed sanction, which would entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 12,000.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the aforementioned resolution proposal, and before a resolution was issued by this authority, the respondent, on December 20, 2024, proceeded to make the voluntary payment, availing themselves of the 20% reduction and waiving any action or appeal in the administrative route.

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the high court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and those arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and CONFIRM the sanctions determined in the dispositive part of the resolution proposal transcribed in this resolution.

The sum of the aforementioned amounts yields a total of 15,000.00 euros.

After the respondent made the prompt payment, although without acknowledgment of responsibility, it is proceeded, by virtue of Article 85 of the LPACAP, to reduce the total mentioned by 20%, which results in the final amount of 12,000.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202400068, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to CAJA RURAL DE TERUEL, S.C.C.

FOURTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment to the withdrawal or waiver of any action or appeal in the administrative route, this authority accepts the waiver expressly stated by the respondent, thus precluding the filing of an optional appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, considering the provisions of Article 90 of the LPACAP, since no appeal can be made in the administrative route due to the express waiver, this resolution will be fully enforceable from the notification thereof.

However, in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension terminated.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

C/ Jorge Juan, 6

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